

18. **One nominated a trustee may sue as such without written acceptance.**—If a person be asked and consent to become a trustee of a *marriage-settlement*, and thereupon his name is introduced into *articles* as the basis of the settlement, he may sue the parties bound by the articles for specific performance, though he may not have executed any written instrument declaratory of his acceptance of the trust (*c*).

19. **Of acceptance under hand and seal.**—With respect to the liability of the trustee, it is perfectly immaterial to him whether he *declare* his acceptance of the office by deed or parol, or his consent be *implied* from his acts, for in each case the obligations imposed upon him are precisely the same (*d*). In the event of a *breach of trust*, the consequences to the parties beneficially interested admitted until recent enactments of a slight variation. A breach of trust creates *per se* a *simple contract* debt only (*e*); but, if the trustee has covenanted under his hand and seal to execute the trust, even though the heirs be not named, the breach of trust, thus becoming a *specialty debt*, would, as respects legal assets, and as to the estates of testators or intestates who died before January, 1870, take precedence of simple contract debts (*f*). However, the mere fact of a trustee being made a party to and executing a deed appointing him to that office, does not of itself amount to a covenant on his part to execute the trusts, if the deed do not contain any words which could be construed a covenant at law (*g*); and if the deed do contain such words, yet the trustee [*206] * cannot be sued upon covenant if he did not execute the deed; though, of course, after accepting

(*c*) Cook v. Fryer, 1 Hare, 498.

(*d*) See Lord Montfort v. Lord Cadogan, 19 Ves. 638.

(*e*) Vernon v. Vawdry, 2 Atk. 119; S. C. Barn. 280; Cox v. Bateman, 2 Ves. 19; Kearnan v. Fitzsimon, 3 Ridg. P. C. 18; Lockhart v. Reilly, 1 De G. & J. 464; Jenkins v. Robertson, 1 Eq. Rep. 123.

(*f*) Wood v. Hardisty, 2 Coll. 542; (see as to this case 1 Eq. Rep. 125); Re Dickson, 12 L. R. Eq. 154; Gif-

ford v. Manley, For. 109; Mavor v. Davenport, 2 Sim. 227; Benson v. Benson, 1 P. W. 131; Deg v. Deg, 2 P. W. 414; Turner v. Wardle, 7 Sim. 80; Primrose v. Bromley, 1 Atk. 89; Cummins v. Cummins, 3 Jones & Lat. 64; see Baily v. Ekins, 2 Dick. 632; Norris v. Sadleir, 8 I. R. Eq. 161, 519.

(*g*) Adey v. Arnold, 2 De G. M. & G. 433; Isaacson v. Harwood, 3 L. R. Ch. App. 225; Holland v. Holland, 4 L. R. Ch. App. 449; Newport v.